

Northgate Talent Partners LLC

www.northgatetalent.com

August 17, 2015

Jason Myers
Chief Operating Officer
Roach, Moss and Hall

Dear Mr. Myers:

This letter confirms that Roach, Moss and Hall has retained this firm to conduct a retained search for a Chief Financial Officer. It sets out what we will do, who will do it, what it costs, and the terms we both work under. If anything in it does not match your understanding of our conversation, say so before you sign it rather than after; a misunderstanding at this stage costs a phone call, and the same misunderstanding at offer stage costs a candidate.

Scope of the Assignment

The assignment is a single search: a Chief Financial Officer reporting to you, with responsibility for the finance organization as we discussed. We are engaged on a retained and exclusive basis for this position. We will not run a parallel process for the same seat with another firm, and we ask that you do not either. A candidate approached twice for one job draws the conclusion that the company does not know what it wants, and that conclusion is very hard to talk him out of afterwards.

Our approach is conventional and we make no apology for it. We begin with a position specification agreed with you in writing, because a search that starts from an unwritten idea of the role ends with a slate you do not recognize. From there we map the market, which for a mid-market finance seat means the identifiable universe of sitting chief financial officers, deputies, and divisional finance leaders inside the sectors and geographies you will actually hire from. We approach that universe directly and in confidence. We present a slate of candidates we have met, referenced, and are prepared to defend one by one, with the reasons we excluded the rest written down and available to you. We stay with the assignment through offer, negotiation, and the first weeks after the successful candidate starts, which is when placements are lost.

The Team

Sandra Fuentes, Principal, will lead the assignment and is your point of contact for anything of substance. She leads our search practice, she will be accountable to you for the slate, and she is

the person who will ask you what you actually need as opposed to what the specification says. Take the question seriously when it comes.

Jeffrey Patterson, Research Consultant, will build and maintain the market map and draft the position specification. He is thorough past the point most clients think they require, which is the correct trait in the person deciding whom you will and will not see.

James Grant, Senior Consultant, will carry the candidate approaches and the relationships behind them. He is the one who will be on the telephone with your finalist late in the evening when the finalist's spouse has had second thoughts, and he is the reason that conversation usually ends well.

I will not run the search day to day. I do read every slate before it reaches a client, and I am reachable directly if the assignment is not going the way you expect. If you ever have that concern, call me. Do not wait for the next scheduled update, and do not be polite about it.

Fees and Payment

Our fee for this assignment is \$92,000, fixed at the outset and not calculated as a percentage of the successful candidate's compensation. We quote fixed fees because a percentage fee gives the search firm a financial interest in the size of your offer, and we would rather not have one. The fee is billed in three equal installments: the first on your signature and the commencement of the assignment, the second thirty days later, and the third thirty days after that, without regard to the stage the search has reached. Reasonable and documented out-of-pocket expenses, meaning travel to meet candidates, candidate travel we arrange on your behalf, and any external reference or verification work you ask us to commission, are billed at cost as incurred and itemized on each invoice. Invoices are payable within thirty days of receipt.

Term and Termination

The assignment commences on August 27, 2015 and continues until the position is filled or until either of us ends it. A search of this kind runs about three months from commencement to a signed offer, and we have planned the assignment on that basis. Either party may terminate on fifteen days' written notice. If you terminate, you owe the installments that have fallen due as of the termination date and the expenses incurred to that point, and nothing further. If we terminate, which we would do only if the assignment as defined had become one we could not honestly complete, we will refund any installment paid for work not yet performed. If the placed candidate leaves within twelve months for any reason other than a change in the role or in your organization, we will conduct one replacement search for expenses only.

Confidentiality

Discretion is the whole of our trade. We will treat your organizational information, your compensation data, and the fact of this search itself as confidential, and we will disclose them to a candidate only as far as the conversation requires and no further. We ask the same of you in the other direction. Candidate identities and materials we provide are confidential to you and to those inside Roach, Moss and Hall who need them in order to decide; they are not to be circulated more broadly, and they are not to be used to approach a candidate outside this process. A sitting executive who takes our call is taking a risk with their own employment, and the obligation runs to them as much as it runs to either of us.

Limitation of Liability

We will conduct this assignment with the care and skill customary in our profession. We do not guarantee an outcome and we cannot: the decision to hire is yours, the decision to accept is the candidate's, and neither one is ours to make. Information about a candidate's history, credentials, and compensation reaches us from the candidate and from references. We verify what can reasonably be verified through our customary reference work, but we do not warrant it, and any background, credential, or criminal verification beyond that work is yours to commission. Our aggregate liability under this engagement, on any theory, is limited to the fees actually paid to us for it, and neither of us is liable to the other for consequential, indirect, or lost-profit damages. Nothing in this paragraph limits our liability for our own fraud or willful misconduct, which is as it should be.

Governing Law

This letter is the entire agreement between us on this assignment and supersedes anything said or written before it. It is governed by the law of the state in which this firm maintains its principal office, without regard to its conflict-of-laws rules, and any dispute we cannot settle between ourselves goes to the courts sitting in that state, to whose jurisdiction we each consent. Amendments are effective only in writing signed by both of us.

Acceptance

If this letter reflects our agreement, please sign both copies and return one to my attention. We will begin on the date set out above. Sandra Fuentes will be in touch within the week to schedule the intake session with you and with whoever else in your organization will sit across from the finalist, and I would ask that you put the whole panel in one room for it rather than see us separately. Panels that brief a search firm separately disagree with each other later, in front of the candidate.

I am glad you called us. This is a findable role and I expect us to find it.

Very truly yours,

Kelly Chavez

Managing Director

Date: August 17, 2015

Jason Myers

Chief Operating Officer, Roach, Moss and Hall

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